

Civil Laws

Civil law in Canada addresses **non-criminal disputes between individuals, businesses, organizations, or governments**. Unlike criminal law, where the goal is punishment for wrongdoing, civil law seeks to **resolve disputes and provide compensation or other remedies**. Civil cases arise in areas such as **contracts, torts (e.g., negligence), property, wills and estates, defamation, and employment**.

Canada is a **bijural nation**, meaning it has two legal traditions: **common law** and **civil law**. In all provinces and territories **except Québec**, civil matters are governed by the **common law** system, based on precedent and judicial decisions. Québec uses a **civil code**, rooted in French legal tradition.

Civil law is **provincial jurisdiction**, meaning each province enacts its own rules and procedures. For example, Ontario follows the **Rules of Civil Procedure** under the **Courts of Justice Act**. Civil cases are usually brought by a **plaintiff** who sues a **defendant**, and the standard of proof is on a **balance of probabilities** (i.e., more likely than not).

The process typically begins with a **statement of claim**, outlining the alleged wrongdoing and desired remedy. The defendant may respond with a **statement of defence**. Cases may proceed through **discovery** (exchange of evidence), **mediation**, and **trial**. Courts encourage **alternative dispute resolution (ADR)** methods like **mediation and arbitration** to reduce costs and delays.

Civil courts in Canada include **Small Claims Courts** (which handle claims under a certain dollar limit, e.g., \$35,000 in Ontario) and **Superior Courts** (for higher-value or complex claims). Appeals go to the **Court of Appeal** in each province and, in rare cases, to the **Supreme Court of Canada**.

Damages awarded in civil cases can be **compensatory** (to make the plaintiff whole), **punitive** (to punish the defendant in egregious cases), or **injunctive** (ordering a party to do or refrain from doing something). Remedies also include **specific performance, restitution, or declarations** of legal rights.

Civil law provides mechanisms for **class actions**, where a group of individuals collectively sues for a common cause (e.g., defective products, environmental damage). Canadian courts have developed procedures to certify and manage class actions fairly and efficiently.

Access to justice in civil law remains a concern, with high legal costs and procedural complexity posing barriers. Legal aid is limited in civil matters, though **pro bono services, legal clinics, and online dispute resolution platforms** are emerging to improve accessibility.

